

(Code Civ. Proc. § 875.)

Contribution requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Here, there is none. Plaintiff's argument that "the principles of equity require Summer Lake to contribute its fair share of the cost to upgrade Pump Station #4 as Summer Lake stands to substantially benefit from any upgrade" (Opp. at 24:19-21) lacks merit. This argument depends on the meaning of contribution in the lay sense, not as defined in CCP § 875. Defendant is entitled to summary judgment on Plaintiff's claim for contribution.

Evidentiary Objections

The Court rules only on those objections material to the Court's ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).)

Defendant's Objections to the Declaration of Eric Risberg:

Objection 1. Sustained.

Objection 2. Sustained.

Objection 3. Sustained.

Objection 4. Sustained.

Objection 5. Sustained.

Defendant's Objections to the Declaration of Ziad Ghandour:

Objection 9. Sustained.

Defendant's Objection to Exhibit 25: Sustained.

12. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
FILED BY CROSS-DEFENDANT RECLAMATION DISTRICT 799
FILED BY:

TENTATIVE RULING:

This Motion is vacated. Cross-Defendant Reclamation District 799's Judgment was entered on July 14, 2026. No appearance is required for this motion on September 9, 2026.

13. 9:00 AM CASE NUMBER: C24-02288
CASE NAME: ELSA BAUTISTA VS. DIANNE ADAIR DAY CARE CENTERS
PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT
FILED BY: BAUTISTA, ELSA

TENTATIVE RULING:

Summary

Plaintiff Elsa Bautista ("Plaintiff") seeks preliminary approval of a proposed wage and hour class action and PAGA settlement with Defendant Dianne Adair Day Care Centers ("Defendant"). Plaintiff